

24NNCV00834 24NNCV00834

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Case Number: 24NNCV00834 Hearing Date: September 28, 2026 Dept: P

[TENTATIVE] ORDER DENYING PLAINTIFF'S MOTION TO SET ASIDE DISMISSAL

I. INTRODUCTION

This is a personal injury and products liability action arising out of an alleged April 8, 2022, incident during which plaintiff Richard Casas ("Plaintiff") sustained injuries while receiving dental treatment at Dental Group of California in Arcadia, California. Plaintiff alleges that a dental mount manufactured and sold by defendants DCI Edge Medical and DCI International, LLC ("Defendants") fell onto his leg, causing injury.

Following substitution of counsel, Plaintiff filed a First Amended Complaint and later a Second Amended Complaint ("SAC") asserting causes of action for strict products liability and negligence. Defendants thereafter filed a demurrer and motion to quash, asserting, among other grounds, that the SAC was vague and failed to identify the specific product allegedly at issue.

On February 27, 2026, Plaintiff filed the operative Third Amended Complaint ("TAC"), alleging causes of action for (1) strict products liability and (2) negligence. On June 12, 2026, following counsel's failure to appear and failure to timely serve the remaining defendants despite the Court's prior warning, the Court dismissed Defendants Nakanishi Dental Laboratory, Inc., Dental Group of California, and Arcadia Dental Group, Inc. without prejudice.

On August 24, 2026, Plaintiff filed the instant motion to set aside the dismissal. The motion is unopposed.

II. LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (b) provides for either discretionary or mandatory relief from certain prior actions or proceedings in the trial court. (*Luri v. Greenwald*, (2003) 107 Cal.App.4th 1119, 1124.)

"Under the discretionary relief provision, on a showing of 'mistake, inadvertence, surprise, or excusable neglect,' the court has discretion to allow relief from a 'judgment, dismissal, order, or other proceeding taken against' a party or his or her attorney. Under the mandatory relief provision, on the other hand, upon a showing by attorney declaration of 'mistake, inadvertence, surprise, or neglect,' the court shall vacate any 'resulting default judgment or dismissal entered.'" [Citation.] Applications seeking relief under the mandatory provision of section 473 must be 'accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.' The mandatory provision further adds that 'whenever relief is granted based on an attorney's affidavit of fault [the court shall] direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.'" (*Ibid.*; Code Civ. Proc., § 473, subd. (b).)

Code of Civil Procedure section 473, subdivision (d) provides that:

The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order. (Code Civ. Proc., § 473(d).)

III. ANALYSIS

Pursuant to Code of Civil Procedure section 473, Plaintiff requests that the Court set aside the dismissal entered on June 12, 2026, asserting it was a result of counsel's mistake, inadvertence, surprise or excusable neglect. (Motion, p.2.)

First, the Court finds that the motion is timely. The dismissal was entered on June 12, 2026, and Plaintiff filed the instant motion on August 18, 2026, within the six-month period prescribed by section 473(b).

As to the merits, Plaintiff seeks to set aside the June 12, 2026, dismissal of Defendants

Nakanishi Dental Laboratory, Inc., Dental Group of California, and Arcadia Dental Group, Inc. Plaintiff's counsel, Andrew M. Morrow, attests that his failure to appear at the June 12, 2026, hearing resulted from an internal calendaring error associated with the implementation of a new legal assistant. Counsel further states that the dismissal was caused by his failure to appear and to timely complete service of the Third Amended Complaint. (Morrow Decl., ¶¶ 4-5.)

However, the Court's June 12, 2026, dismissal was not based solely on counsel's failure to appear at that hearing. The record reflects an ongoing failure to timely serve the remaining defendants despite an express warning from the Court. (6/12/26 MO, p. 1.) At the March 13, 2026, Case Management Conference and OSC re: proof of service, the Court noted that the action was already 704 days old and that Plaintiff had failed to timely file the Third Amended Complaint as previously ordered. (3/13/26 MO, p. 1.) The Court imposed \$250 in sanctions for that failure. The Court further noted that proof of service had not been completed and continued the matter to June 12, 2026, for an OSC re: proof of service and an OSC: re involuntary dismissal if proof of service was not filed before the continued hearing. (Id.)

By the June 12, 2026 hearing, the action was 795 days old. Plaintiff's counsel did not appear. The Court further noted that only one party had been served, the remaining parties had not been served, and the previously imposed \$250 sanction remained unpaid. The Court specifically referenced its prior warning that Plaintiff was required to serve all remaining parties or the Court would dismiss them on its own motion. No proof of service had been filed. The Court thereafter dismissed Nakanishi Dental Laboratory, Inc., Dental Group of California, and Arcadia Dental Group, Inc. without prejudice.

Moreover, Plaintiff's failure to serve the dismissed defendants provided an independent basis for dismissal. Code of Civil Procedure section 583.410 permits the Court, in its discretion, to dismiss an action for delay in prosecution. Under section 583.420, subdivision (a)(1), an action may be dismissed where service is not made within two years after the action is commenced against the defendant. (CCP §§ 583.410, 583.420(a)(1).) Here, by June 12, 2026 hearing, the action had been pending for 795 days – more than two years – and the dismissed defendants remained unserved despite the Court's prior warning that failure to complete service would result in dismissal.

Thus, while counsel attributes his failure to appear on June 12 to a calendaring error, counsel provides no explanation for the separate and ongoing failure to serve the dismissed defendants despite the Court's express March 13 warning. Indeed, counsel acknowledges that the dismissal resulted not only from his failure to appear, but also from his failure "to timely complete service of the Third Amended Complaint." (Morrow Decl., ¶ 5.) The declaration, however, does not identify any mistake, inadvertence, surprise or excusable neglect that prevented Plaintiff from completing service during the approximately three months between March 13 and June 12 hearings.

Because Plaintiff has not demonstrated that the failure to timely serve the dismissed defendants resulted from mistake, inadvertence, surprise, or excusable neglect, the Court finds that Plaintiff has not established grounds for relief under Code of Civil Procedure section 473(b). Thus, Plaintiff's motion to set aside the June 12, 2026, dismissal is DENIED.

IV. ORDER

The Court DENIES Plaintiff's motion to set aside dismissal.

Plaintiff is to give notice.

Dated: September 28, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT